



POLICE DEPARTMENT

September 30, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303123 (Incident Date: April 11, 2023) regarding Sergeant Eduardo Dos Santos, Tax No. 954751 (DADS No. 2024-31487)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303123, pertaining to Sergeant Eduardo Dos Santos. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Dos Santos would be detrimental to the Police Department's disciplinary process.

The Police Commissioner agrees with the CCRB's finding that Sergeant (then Police Officer) Dos Santos failed to process the complainant's civilian complaint. Sergeant Dos Santos was obligated to help the complainant process the civilian complaint when the complainant requested it. However, given the increasing hostility of their interaction, and the intervention of the desk sergeant, the penalty of Sergeant Dos Santos's failure should be mitigated. As to the second allegation, while Sergeant Dos Santos was in violation of the Department's uniform policy, the patches on his uniform were not discourteous in nature. Furthermore, the complainant did not find the patches discourteous.

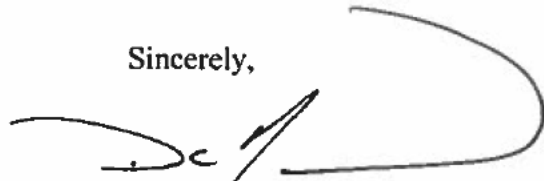
Sergeant Dos Santos has no formal disciplinary history and no prior substantiated CCRBs. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegation that Sergeant Dos Santos acted discourteously by wearing unauthorized patches on his uniform.

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Additionally, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the violation of Administrative Guide Procedure No. 305-01 (General Uniform Regulations) and Patrol Guide Procedure 207-28 (Processing Civilian Complaints).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 2, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Sergeant Eduardo Dos Santos
Disciplinary Case No.: 2024-31487

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 30, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against Sergeant Dos Santos would be detrimental to the Police Department’s disciplinary process” and you intend to retain jurisdiction over this matter and “impose no disciplinary action for the allegation that Sergeant Dos Santos acted discourteously by wearing unauthorized patches on his uniform” but directing “the issuance of a Schedule ‘A’ Command Discipline with the forfeiture of five (5) vacation days” for failing to process the complainant’s complaint against another officer and for violating the Department’s uniform regulations set forth in Administrative Guide 305-01. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Sergeant (then Police Officer) Dos Santos and permit CCRB to prosecute this case. It is undisputed that Sergeant Dos Santos was wearing an unsanctioned patch on his uniform that showed a skull as the face of the Statute of Liberty with the phrase “LIBERTY IS DEAD” printed three (3) times around it. CCRB disagrees with your finding that “the patches on his uniform were not discourteous in nature. The New York City Police Department’s Disciplinary System Penalty Guidelines states that “discourtesy may include foul language, acting in a rude or unprofessional manner (such as demeanor or tone), and flashing rude or offensive gestures that is unjustified or unwarranted with no legitimate law enforcement purpose.” Segreant Dos Santos’ unauthorized patch on his uniform is in fact discourteous and served no legitimate law enforcement purpose. In addition, while you stated that “the complainant did not

find the patches discourteous,” this is not a required element for CCRB to prove whether the unauthorized patch that Sergeant Dos Santos had on his uniform was discourteous. Whether or not the complainant found the patch discourteous is not relevant to Sergeant Dos Santos’ unauthorized modification of his uniform by placing this patch on his uniform.

It is also undisputed that Sergeant Dos Santos failed to process the complainant’s civilian complaint against another member of service. However, CCRB does not agree with your intention to mitigate the penalty for Sergeant Dos Santos based on the increasing hostility between the complainant and Sergeant Dos Santos. This interaction was escalated by both Sergeant Dos Santos and the complainant and therefore, the presumptive penalty of the forfeiture of ten (10) vacation days would be a more appropriate penalty for this substantiated misconduct. By only imposing a Command Discipline Schedule A and the forfeiture of five (5) vacation days, Sergeant Dos Santos is not being held accountable for this serious misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction and imposing no disciplinary action for the allegation that Sergeant Dos Santos acted discourteously by wearing unauthorized patches on his uniform but directing the issuance of a Command Discipline Schedule A and the forfeiture of five (5) vacation days for failing to process the complainant’s complaint against another officer and for violating the Department’s uniform regulations set forth in Administrative Guide 305-01. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Sergeant Dos Santos.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 3, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303123 (Incident Date: April 11, 2023) regarding Sergeant Eduardo Dos Santos, Tax No. 954751 (DADS No. 2024-31487)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 2, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant Eduardo Dos Santos. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Dos Santos for the reasons expressed in my September 30, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule “A” Command Discipline with the forfeiture of five (5) vacation days for the violation of Administrative Guide Procedure No. 305-01 (General Uniform Regulations) and Patrol Guide Procedure 207-28 (Processing Civilian Complaints). Furthermore, the Police Commissioner directs that no disciplinary action be imposed for the allegation that Sergeant Dos Santos acted discourteously by wearing unauthorized patches on his uniform.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office